

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No.

DAVID GUARA,

Plaintiff,

v.

CITY OF TRINIDAD, a City Municipality, and
CITY OF TRINIDAD FIRE DEPARTMENT,

Defendants.

COMPLAINT

The Plaintiff, David Guara, by and through his attorneys, Gregory Fasing and James A. Carleo, states and alleges as his complaint:

I. INTRODUCTION

1. Plaintiff brings this action pursuant to *Title VII* of the *Civil Rights Act of 1964*, as amended, 42 *U.S.C. §2000(e)* and under the Equal Protection and Due Process Clauses of the Fifth and Fourteenth Amendments to the United States Constitution, 42 *U.S.C. § 1983*. These claims arise out of the Defendants' discriminatory treatment of Plaintiff based on his national origin, Hispanic; Defendants' retaliation against Plaintiff because of his complaints of discrimination; and Defendants' failure to eliminate a hostile work environment.

II. JURISDICTION

2. This Court has jurisdiction of the Plaintiff's claims herein pursuant to 42 *U.S.C. §§ 1331 and 1343(3)*.

3. Plaintiff has complied with all administrative filing requirements and received a right to sue letter dated July 21, 2010.

III. PARTIES

4. The Plaintiff, a Hispanic, was at all relevant times a fire fighter employed by the Defendants.

5. The Defendant, City of Trinidad, is a city municipality within the State of Colorado.

6. The Defendant, City of Trinidad Fire Department, is overseen by the City of Trinidad.

IV. GENERAL ALLEGATIONS

7. Plaintiff was hired as a temporary fire fighter in 2000.

8. Plaintiff was promoted to the position of engineer/driver shortly thereafter, and on or about May 1, 2001, was hired as full-time.

9. Since nearly the beginning of Plaintiff's employment, he was discriminatorily harassed by co-workers.

10. Plaintiff reported the discriminatory harassment, numerous times, to the fire chief who failed to do anything about it.

11. Instead of stopping the harassment, Fire Chief Jim Bulson and Captain Leroy Perea eventually retaliated against Plaintiff by placing him on suspension, without pay, after he reported an incident of harassment.

12. The harassment by co-workers included derogatory and degrading remarks directed at Plaintiff by co-workers. These remarks were specifically directed towards Plaintiff's Hispanic origin.

13. Co-workers continually ridiculed Plaintiff's Spanish heritage through degrading remarks and absurd questions about "*Spaniards, Conquistadors, Frenchmen and Indians*".

14. Co-workers called Plaintiff a "*coyote*", which is a Spanish slang term for mixed breed.

15. When Plaintiff stated his heritage is "*Spanish, from Spain*" co-workers stated, "*No, he's just a Mexican.*"

16. Co-workers vandalized Plaintiff's locker and taped derogatory pictures to the locker.

17. In addition to the ethnic slurs, co-workers continually and in front of other fire fighters called Plaintiff obscene names.

18. When Plaintiff tape-recorded a conversation in which co-workers engaged in discriminatory and obscene statements directed at Plaintiff, he was threatened with termination because he tape-recorded the conversation.

19. Ultimately, the Colorado Division of Civil Rights found probable cause as to Plaintiff's complaints.

20. Despite the probable cause finding, the Defendants have not eliminated the hostile environment and continue to retaliate against Plaintiff.

FIRST CAUSE OF ACTION
42 U.S.C. § 1983-Due Process And Equal Protection

21. Plaintiff hereby incorporates paragraphs 1 through 20 of this complaint as though fully alleged herein.

22. Plaintiff was denied the right of liberty by Defendants acting under color of law without due process of law and in denial of Plaintiff's right to equal protection in violation of the Fifth and Fourteenth Amendments to the Constitution of the United States.

23. Plaintiff was treated differently than other City of Trinidad fire fighters in the terms and conditions of his employment.

24. As a proximate result of the Defendants' actions Plaintiff suffered the loss of wages, loss of benefits and promotions and suffered emotional distress and other consequential damages.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983-Retaliation Based On Plaintiff's Complaint Regarding Discrimination
Based On His National Origin

25. Plaintiff hereby incorporates paragraphs 1 through 24 of this complaint as though fully alleged herein.

26. Plaintiff was denied the right of liberty by Defendants acting under color of law without due process of law and in denial of Plaintiff's right to equal protection in violation of the Fifth and Fourteenth Amendments to the Constitution of the United States.

27. Plaintiff was retaliated against based on his complaints of discriminatory treatment.

28. As a proximate result of the Defendants' actions Plaintiff suffered the loss of wages, loss of benefits and promotions and suffered emotional distress and other consequential damages.

THIRD CAUSE OF ACTION
Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. §2000(e) Discrimination
Based On Plaintiff's National Origin

29. Plaintiff hereby incorporates paragraphs 1 through 28 of this complaint as though fully alleged herein.

30. Plaintiff was subjected to discriminatory treatment on the basis of his national origin and in the terms and conditions of his employment with the Defendants.

31. Plaintiff was retaliated against based on his complaints of discriminatory treatment.

32. As a proximate result of the Defendants' actions Plaintiff suffered the loss of wages, loss of benefits and promotions and suffered emotional distress and other consequential damages.

Wherefore, Plaintiff respectfully requests that this Court enter judgment in his favor and against Defendants, and order the following:

- a. Compensatory damages including but not limited to those for emotional suffering;
- b. Back pay and fringe benefits;
- c. Injunctive and/or declaratory relief;
- d. Pre-judgment and post-judgment interest at the highest lawful rate;
- e. Attorney and expert witness fees and costs; and

h. Such other relief as justice allows.

PLAINTIFF DEMANDS A JURY TRIAL ON ALL ISSUES SO TRIABLE.

Respectfully submitted,

Fasing Law Firm P. C.

s/Gregory J. Fasing

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